

The Court will also continue the both demurrers to the SAC pending receipt of the aforementioned stipulation in the event the stipulation allows the SAC to remain filed as of its original file date. In other words, for the SAC to remain filed as of its original file date and for the pending demurrers along with all related pleadings filed by all parties to go forward as presently pled, the stipulation and proposed order will need to make reference to the parties agreeing their stipulation and resulting order are effective nunc pro tunc to September 17, 2025, and the parties stipulate the Court may rule on the pending demurrers taking into consideration all currently filed pleadings related to same. Moreover, the parties will need to waive any procedural deficiencies regarding the issues indicated herein.

Accordingly, on the Court's own motion, both Demurrers filed by Defendant Bamboo IDE8 and Sutton National Insurance Company, respectively, are hereby continued to January 26, 2026 at 1:30 p.m. in Dept. A. Should the parties fail to submit a stipulation addressing in whole or part the issues set forth above, the Court intends to strike the SAC and deny both demurrers to the SAC as moot.

7. CU0001681 Randy Ryan Agno et al vs. James L Gould, IV. et al

No appearances are required as to the Demurrer. Should a party desire oral argument as to the tentative ruling as to the Demurrer, they shall provide timely request and notice as required.

Appearances are required as to the issue of winterization of the cabins at issue in this matter.

Demurrer

Defendants demurrer is sustained with leave to amend. Plaintiffs are granted leave to amend their third cause of action and must file their amended complaint within ten (10) days of service of notice of this Court's order. Defendants' motion to strike is denied without prejudice.

Legal Standard on Demurrer

"[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff's ability to prove those allegations." *Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140. A demurrer is directed at the face of the complaint and to matters subject to judicial notice. Code Civ. Proc. § 430.30(a). All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions, or conclusions of fact or law. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604. A judge gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context." *Blank, supra*, 39 Cal.3d at p. 318. In the event a demurrer is sustained, leave to amend should be granted where the complaint's defect can be cured by amendment. *The Swahn Group, Inc. v. Segal* (2010) 183 Cal.App.4th 831, 852.

Analysis

In order to sufficiently allege a cause of action for financial abuse under Welfare and Institutions Code § 15610.30, the plaintiff(s) must meet the definition of “elder or dependent adult”.

“Dependent adult” means a person...between the ages of 18 and 64 years who...has physical or mental limitations that restrict his or her ability to carry out normal activities or to protect his or her rights.” Welf. & Inst. Code § 15610.23(a). Pursuant to Welfare and Institutions Code § 15610.27, “elder” means any person residing in the state who is 65 years of age or older. Welf. & Inst. Code § 15610.27.

Here, Plaintiffs’ FAC alleges, “Plaintiff Randy Ryan Agno was and is over the age of fifty-eight (58), and Plaintiff Amy Beth Agno is likewise of advanced age as defined under California’s Elder Financial Abuse Statutes.” In opposition to the demurrer, Plaintiffs do not argue that they meet the definition of elder, but rather argue they are bringing the claim on behalf of Judith and Kenneth Johnson, Carol Siefkin, and Patricia Murphy, who are not parties to the instant action. Plaintiffs also assert Plaintiff Randy Agno qualifies as a dependent adult. Defendants argue Plaintiffs do not have standing to assert a claim for elder abuse on behalf of non-parties. The Court agrees with Defendants.

Code of Civil Procedure § 367 states, “[e]very action must be prosecuted in the name of the real party in interest...” Code Civ. Proc. § 367. Further, Code of Civil Procedure § 369 codifies the only exceptions to that rule, which are a personal representative, a trustee of an express trust, a person with whom or in whose name a contract is made for the benefit of another, or any other person expressly authorized by statute. Code Civ. Proc. § 369(a)(1)-(4). None of the exceptions apply in the case at bar. Therefore, Defendants’ demurrer as to the third cause of action is sustained.

Leave to amend is granted “where there is a reasonable possibility of successful amendment.” *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348. In opposition, Plaintiffs allege Plaintiff Randy Agno qualifies under the statute as a “dependent adult.” Therefore, Plaintiff has sufficiently provided a reasonable possibility that the defects in the pleading can be cured by amendment. Leave to amend is granted.

Because the motion to strike is dependent on the demurrer being sustained without leave to amend, the Court denies the motion to strike without prejudice.

8. CU0001840 Richard A Perdomo Canales v. Best Western International, Inc., et al.

The unopposed motion of Defendant Best Western International, Inc. to compel responses to Form Interrogatories (Set One) is granted. Plaintiff Richard A. Perdomo Canales is ordered to provide further verified responses, without objections, to Form Interrogatories Nos. 12.2, 12.3, and 14.1 within thirty (30) days of notice of entry of this order.

Meet and Confer

Per the Declaration of Defendant’s counsel, efforts were made to meet and confer prior to this filing. Mezger Decl., ¶¶ 8-9, Exhs. 5-6. It appears Plaintiff’s counsel responded to these efforts by email noting Defendant’s meet and confer efforts were insufficient because they did not